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Mr. Piero A. Bugoni Pro - Se
160 W. Camino Real
191
Boca Raton, FL 33432

IN THE UNITED STATES DISTRICT COURT
IN AND FOR THE WASHINGTON DISTRICT OF COLUMBIA

Piero A. Bugoni, Individually,
PETITIONER

Case No.:

PETITION FOR WRIT OF MANDAMUS

vs.

Joseph B. Edlow
In His Official Capacity
RESPONDENT

Jurisdiction:

1) This Court has Jurisdiction per Article III US Constitution, 8 U.S.C. § 1182, 20 CFR § 655, 28 U.S.C. § 1331, 28 U.S.C. § 1332, 28 U.S.C. § 1361, and 28 U.S.C. § 1651.

Petitioner seeks a Writ based on pleadings of Federal Law, for matters that affect persons, and take place among multiple of the Several States, and between multiple nations.

Venue:

2) Venue is proper in this Court as Respondent directs the USCIS from Washington DC.

Parties:

3) Petitioner, Piero A. Bugoni, an individual person, “Interested Party”, “Aggrieved Party”, and a “Displaced American Worker” Per 20 CFR 655.

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4) Respondent Joseph B. Edlow in his official capacity as the director of USCIS, and the party to mandate by the Writ sought.

Background:

5) All of the statistical claims made herein are taken from the LCA Disclosure Data published by the US DOL. For the purposes of this action, LCA Disclosure Data for all of 2022, 2023, 2024, and current to 30 June 2025 are used. Those Data were combined into an SQL Database, queried for evidence presented herein, and are referred to as the “LCA Database” or “LCA Data.”

Standing:

Petitioner stands in this matter as follows:

6) Petitioner is an experienced worker and business person with at least thirty years experience working for hire in occupations classified under SOC Code 15-1200. Petitioner demonstrates in part, his qualifications to do that work by the Data Analysis described herein that is used to discover and expose the collusive fraud that is committed by more than one thousand Indian Scammer IT Companies, to falsely claim they cannot find American workers for Specialty Occupations they are supposedly employing, in order to traffic Indian workers into American Jobs.

7) Petitioner works in Specialty Occupations, for hire, as a W2 Employee, as director of and worker for a sole person corporation, (Corp to Corp), and occasionally as an unincorporated Sole Proprietor. (“Gig Worker” / 1099). Petitioner is aggrieved by the irreparable displacement in employment and loss of lucrative business that he has been caused by the H1B Visa Program since at least 2008.

Nature of Action:

8) Petitioner seeks a Writ Of Mandamus to compel respondent to perform the following mandatory official duty:

Suspend the operation of all H1B Visas issued by lottery in 2022, 2023, 2024, and 2025, pending determination of the truth and accuracy of all LCAs filed for those Visa holders, and the truth and accuracy of all Public Access Files held by all employers employing those Visa holders;

On the following grounds:

Respondent Has Failed To Perform A Clear And Non-Discretionary Public Duty:

9) Respondent's failure to end the systemic abuse of the H1B Visa system the moment he took office is the breach of duty that is cause for this Petition. The imperative for the doing of that duty was imposed on him by the Policy and Custom of multiple prior administrations. As such it is not a specific failure on the part of respondent that caused the problem, the failure was to stop it immediately. As long as that failure continues, Mandamus is in order. The duty owed Petitioner is the same duty owed all American workers. To terminate abuse of government programs by foreign entities and nationals that is adversely affecting Americans. That Duty is non-discretionary. Further there exists a non-discretionary duty to keep the unlawful conduct described herein from happening in the first place. Respondent was tasked with that duty as well the moment he took office.

10) Because the evidence presented herein was obtained from sources known to Respondent, Respondent can be taken to know all of it and its implications.

Lack Of Adequate Legal Remedy Exists To Correct Respondent's Failure:

11) Because of the size and scope of the problem, ordinary civil actions against the violating parties are inadequate. It would almost certainly require naming a class defendant of all the Visa abusers, yet even that possibility is inadequate as individual parties may opt-out of that class, and thereby increasing the scope of litigation by orders of magnitude. Regardless, civil action against these violators is not an appropriate remedy because it is the breach of duty by respondent that allowed the problem in the first place, and it is a breach of duty by respondent to allow it to continue. Further, it is not displaced American workers' obligation to fix the problem. American workers did not create the H1B Visa Program. American workers are not tasked with managing it. American workers do not have any official capacity to terminate it, nor prosecute violators. All of those fall on Respondent. It is Respondent that caused the displacement of American workers by failure to do a mandatory duty, it is Respondent that needs to fix it by doing that duty, and since he is not, he must be made to do that duty.

12) Additionally, because criminal activity is a component of Visa system abuse, and because there exists clear and convincing evidence that criminal activity is taking place, remedy for that falls outside ordinary civil litigation by the Public. It is an ordinary standard of duty that criminal activity mandates official act against it, and that if the criminal activity is felony, that mandate includes arresting the perpetrators. Official capacity to cease criminal activity connected to H1B Visa abuse is wholly Respondents.

Respondent's Unreasonable Delay In The Performance Of Said Mandatory Duty:

13) As stated, the H1B Visa program should have either been terminated, limited or better regulated as long ago as 2008. It is irrelevant that Respondent just took office. The moment he did, he took responsibility for the duty assigned to him.

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14) The Duty in breach is one that falls upon the office itself, never the person holding that office. This is simply because office holders can come and go at any time, and dealing with matters of urgency, much less emergency, cannot be predicated on some new officeholder “getting up to speed”. As such, any delay in handling a problem, the handling of which is years overdue, is unreasonable.

15) With regard to Petitioner's claim of organized Immigration Fraud, if as a matter of actual fact, when it comes to Respondent Edlow in his individual capacity, that this is the first he's “heard of it”, then this Petition constitutes putting Respondent “On Notice” to get off his ass now, and do something about it.

Respondent's Failure To Act Violates The Rights of American Workers, Citizens And Businesses As Follows:

Peace and Dignity:

16) It offends the peace and dignity of every American worker to have foreign corporations operating on American soil falsely claiming they cannot find American workers to fill jobs, in order to import foreign workers, and give those jobs to them.

17) It is an offense to the Peace and Dignity of every American to have foreign corporations start or assist with starting more than 1,000 domestic corporations, and staff them with foreigners for the purpose of colluding to falsely claim that they cannot find American workers in order to traffic foreign workers to foreign corporations displacing American workers in America.

18) It is an offense to the Peace and Dignity of every American for corporations foreign and domestic to collude for the purpose of engaging in anticompetitive business practices, market-rigging practices and market cornering practices, to displace American workers and take business away from American companies, in America.

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Life:

19) The Right to Life includes the quality thereof. By stealing an entire market of lucrative jobs, and businesses, Indian scammers have deprived Americans of that lucre, and the quality of life it brings, by stealing it for themselves.

Liberty:

20) The Right to Liberty includes Liberty to Contract, and the Liberty to pursue a career. That Liberty has been stolen from American workers by a concerted effort of thousands of Indian scammers acting as phony employers, and using fraudulent LCA Filings to direct Jobs from American companies for American workers instead to foreign workers disproportionately, exclusively, and permanently.

Property:

21) Property is anything of value. Value is the object of any human desire. Petitioner among hundreds of thousands of Americans similarly situated desire to profit, pay their expenses, provide for their families and for their elderly years. Those are all items of Property. The H1B Visa program violates American Rights to that Property by creating an avenue for Indian scammers to take that property away from Americans, as described in this Petition.

Commerce:

22) The H1B Visa program Violates Americans' Right to Engage In Commerce because it creates an avenue for Indian scammers to engage in anticompetitive, collusive, and monopolistic business practices, as described in this Petition, and those business practices displace American workers and interfere by a pattern of wire fraud, bribery, ID fraud, citizenship and naturalization fraud, obstruction, Visa fraud, immigration fraud, human trafficking, and other RICO acts, with American companies pursuing and profiting from interstate and foreign commerce.

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Constitutional Grounds For Granting Writ:

23) The H1B Program is enabled by statute, specifically 8 U.S.C. 1182(n), and is regulated by 20 CFR 655.

24) The enabling statute is overbroad because it lacks language necessary to prevent the colossal fraud described herein. As such it allows application far beyond the scope of its stated objective, and as described herein, its extra breadth is used to commit fraud and other offenses both civil and criminal.

25) Violation of Separation of Powers. The statute transfers adjudicative and legislative powers to executive branch. Because of its lack of sufficient restriction, it must be supplemented by CFR Rules, and bureaus for hearing cases, like BALCA, in order to be practically enforced by the executive branch.

26) The statute, and the Program created by it, violates Rights of Americans as described supra.

Constitutional Standards Of Review:

Strict Scrutiny:

27) There exists NO COMPELLING OBJECTIVE whatsoever for the program. To that end the burden of proof is upon Respondent, and Respondent must show the Compelling Objective. Failure by Respondent to show compelling objective voids any statute, regulation, policy, or custom that violates Fundamental Rights.

28) Less restrictive alternatives exist:

a) Business sponsored scholarships are tax-deductible, and can easily supplant the importation of foreign workers. Simply because a company can't find a worker does not mean they cannot create one.

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b) Remote work. Given the advent of remote work, the potential talent pool available to employers increases exponentially. Claims of inability to find American workers within a given “ordinary commute distance” fail when American workers can attend from anywhere in the world at anytime.

Rational Basis:

29) Arbitrariness: There is nothing more arbitrary than a lottery. To the stated objective of the law, the individuals selected should be selected by aptitude, not random chance, and their aptitude should be determined by American workers already present at the sponsoring employers, occupying the same specialty for which the LCA was filed.

30) Caprice: The capricious nature of the program is a product of the caprice of its users, who either somehow believe or have the attitude that American workers are inferior.

Facts:

31) Indian Scammers have massively exploited the H1B Visa system to effect a complete denial of employment to American Workers. They have done this by creating a multitude of Small House IT Companies, (SHITCOs), who act as “Visawali”, “Visa Peddlers”, to the larger “India Focused” IT Companies, (“Bollywood”), by flooding the Department Of Labor with fraudulent LCAs, and then transferring whatever Visas they are able to obtain to these larger companies. These actors are fraudulent because they do not have any actual contracts with customer companies, but instead, act as “Tier-1 Vendors”, or “Implementation Partners” to the larger Indian IT Companies, who have the actual contracts with American Companies. The SHITCOs do not offer jobs to Americans “in good faith”, much less at all. They use phony job listings on jobs websites to create the false pretense of offering those jobs “in good faith”, and use automated systems to continue to update job listings to maintain that appearance, when at all times those jobs are predestined for H1B Visa holders.

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American workers who apply to the phony job listings will never hear back from those

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companies, and the personnel at those companies who actually receive the applications, if any at all, will never pass those applications on to any actual hiring or designated party, anywhere, much less ever review the application.

32) In short, the SHITCOs all follow the same scam template: In no case is the actual work done by the H1B Visa holder done for the SHITCO itself. They always act as placement agencies, and will claim an American Company as the SECONDARY_BUSINESS_ENTITY in their LCA Filings. At no time do these SHITCOs have any kind of direct contract with the American Company client. At all times they are acting as 4th-party middlemen. In some cases they may actually mention the prime vendor to the client in their LCA, but in many cases they do not. Regardless, while they may be the party that actually pays the worker, it is the end client that receives the work product, not the prime vendor, but, the worker must execute agreements nonetheless with that vendor to the same extent as a direct employee of that vendor would, even though that person is claimed to be an outside contractor to this vendor. These prime vendors then misrepresent to their clients that the actual worker is their employee, when in fact that person is an employee of, or a contractor to an outside partner. From the clients' perspective all of these individuals appear as employees of their prime vendors. They are usually unaware that their prime vendors are working with hundreds of smaller companies to illegally file extra Visas to place people with them. Then, at some point the Visas obtained from subordinate companies will be transferred to the prime vendor, and become cap exempt, and the SHITCO can then apply for more Visas, and the prime vendor can make previously acquired foreign workers PERM. They have been at this scam for at least twenty years.

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33) Many of the occupations under SOC Code 15-1200 are no longer any kind of specialty whatsoever. They have come to ubiquity. While the rates of pay for those occupations may fall within the established values to be considered as such, those values are based on past economics that no longer exists due to the inflation caused by the conduct of Indian

scammers described herein. Nothing about the work itself is anything outside the collective knowledge base of the American labor force at the current time.

34) The collective Visa fraud engaged in by the Indian scammers described herein, and the business practices engaged in by the American companies, and state agencies partnering with them, is responsible in large part for the massive inflation that has taken place in the past decade, and longer. In all business transactions, direct party to party obligation is the most cost effective.

35) Third, (and now fourth), party interlopers only add cost overhead, and that cost overhead is high. In all businesses, labor cost is the greatest expense by a wide margin. Municipal and county governments typically operate on an 80% - 90% labor cost. Corporations that employ professionals may have labor cost around 60% or more. Ultimately personnel must produce a margin above the expense they are. Non-contributory interlopers only add the expense of their wages and salaries, but not any kind of margin, nor revenue. As such, the cost of sustaining them must be paid by the producing party, the worker. It is the worker's work that generates the revenue that pays the expenses of the interlopers. Because of the added cost that comes with employing people that bring third and fourth parties with them, customers must pass those costs on to consumers. In short, Americans have their jobs taken away from them by foreign companies, and ultimately then have to pay more for everything because of the business practices of the companies that took those jobs.

36) The use of the H1B Visa system for personnel staffing, or providing IT Services via contracts with American companies is not in cognizable within Section (n) of the INA. The purpose of the law was to provide supplemental workers to employers directly. That is, the actual company for whom the work was being performed for company purposes. This means companies that produce consumer goods and provide consumer services to the market as a

whole. Third-party and fourth-party employers are not cognizable under INA Section (n). That the H1B Visa program has been allowed to be used as such is a product of its unconstitutionality. The law failed to specify this condition, and proscribe it, and thereby allowed the executive branch to interpret the law to include “Employers” placing people at Secondary Business Entities to obtain Visas.

37) If only primary employers were allowed to sponsor Visas for foreign workers, only as many as needed would be applied for. Primary employers have no incentive to accumulate Visas. Allowing companies that place people at Secondary Entities to sponsor Visas creates an incentive to procure as many as possible to exploit that market. It creates a business opportunity for these third, and fourth party providers. To that extent, one would expect them to capitalize on it, but that was not the intent of INA Section (n). Creating a market for companies that use foreign workers to add third and fourth party overhead to the cost of labor for American companies is not cognizable in any way within the scope of INA Section (n).

38) Additionally, since H1B Visas are transferrable, they literally become articles of value that can be bought, sold, traded, and even used for criminal activity. An analogy would be state liquor licenses, and in some cases other such grants from a state, that have value and can be legally transferred to other parties. That creates a market incentive to accumulate as many as possible, whether legally or illegally, and has led to the market circumstance of the larger Indian scammer IT Companies spawning a multitude of SHITCOs to corner the market. Creating a tradable license that can be exchanged for profit is not the intent of INA Section (n), nor was giving away thereby a valuable business sector, to foreigners and foreign companies.

39) The H1B Visa program has been implemented as such, by the executive branch, as a matter of Policy and Custom of the USCIS. It can be re-implemented differently, or un-implemented entirely.

Free Press Publications:

40) Petitioner gives this Court Judicial Notice of the following free press publications in aid of its Jurisdiction in this matter:

41) “reddit” Communities where facts relevant to this claim are published openly in the Free Press, and viewed by hundreds of thousands of American workers:

<https://www.reddit.com/r/AmericanTechWorkers/>

<https://www.reddit.com/r/StopH1B/>

<https://www.reddit.com/r/CSCareerHacking/>

<https://www.reddit.com/r/SoftwareEngineerJobs/>

<https://www.reddit.com/r/H1BVisaFraud/>

42) Two well respected scam busters with thousands of hours of time and effort between them exposing Indian scammers discuss how these scammers exploit systems in the same manner that is used to exploit the H1B program:

<https://youtu.be/7zXMPzCrInc?t=4689>

43) The trajectory of H1B fraud by Indian scammers over the years:

https://www.pewresearch.org/wp-content/uploads/sites/20/2025/03/SR_25.03.04_h-1b_3.png

Note the distinctive inflection point around 2008 followed by a positive slope.

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44) Senator Sanders discussing the disproportionation of H1B Visas to “India Focused” IT Firms:

https://www.reddit.com/r/AmericanTechWorkers/comments/1nmb3ri/bernie_sanders_warning_us_about_h1b_visas_17/

45) “How an Army of Middlemen Game the US Work Visa System”

https://www.youtube.com/watch?v=p_jjJMoPHVA

A report by Bloomberg Originals regarding the circumstances described herein.

Investigations By Petitioner:

46) The following investigations were done by Petitioner using LCA Disclosure Data and other resources, and are presented here as evidence in support of this Petition:

47) Petitioner investigating one previously known WILLFUL_VIOLATOR, Srinivasa Reddy Kandi, is documented in this YouTube video:

<https://www.youtube.com/watch?v=WWPx-9tNn-w>

48) The above video describes thousands of LCAs filed, ALL on behalf of entirely non-existent companies, claiming some of the largest corporations in the market as their clients.

All of the phony front companies in this video are tied to multiple parties at a single residential address, 6688 EXCELSIOR PL, FRISCO TX. There is one record in LCA Database that shows that same address as the WORKSITE_ADDRESS:

EMPLOYER_NAME: ABSOLUTE INFORMATION TECHNOLOGIES

49) Searching the database for either EMPLOYER_NAME or SECONDARY_ENTITY_BUSINESS_NAME matching ABSOLUTE INFORMATION TECHNOLOGIES, reveals ninety-three records with ten of them being associated with

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TekOrg. Doing the same search for TekOrg reveals 2,325 more records, where the majority

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of them have the exact same JOB_TITLE. When a SECONDARY_ENTITY is defined in the records for TekOrg, many of them are just yet another SHITCO.

50) One address for TekOrg resolves to a residential apartment that may or may not be occupied, but is certainly not occupied by the 1,618 beneficiaries of LCAs that were filed by TekOrg with that location as the WORKSITE_ADDRESS. All of those LCAs have the same JOB_TITLE, and all of them have SECONDARY_ENTITIES defined, with most of those being additional SHITCOs. The total number of LCAs (past 3 years), that have been filed with a WORKSITE_ADDRESS at that apartment is 1,628. Five of the additional ten beyond those filed by TekOrg were filed by COGNIZANT TECHNOLOGY SOLUTIONS US CORP. This reveals a nexus between Srinivasa Reddy Kandi, and COGNIZANT, a large IT Services provider, incorporated in New Jersey, and operated by Indian nationals.

Synechron Inc. – New York City

51) Excessive LCA filings. More persons than might actually be able to occupy their office. Contacted EMPLOYER_POC, to verify Labor Conditions for those LCAs. He claimed he was driving and could not talk. He agreed to take the call a half hour later. Called back multiple times, no answer, directed to voicemail, which was full. Petitioner contacted a messenger service in NYC to see if they could go to the office location to determine if there actually was an active business there. That building does not allow persons to deliver directly to offices, but instead to a messenger center on the ground floor. For now, Petitioner is unable to determine Labor Conditions at that location, or if there even exists a valid business at that location.

Office Depot – Boca Raton Florida

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52) Numerous LCA filings but no corresponding jobs on their website. Contacted EMPLOYER_POC, Jamila Paradas. That POC refused to disclose anything from their Public Access File, or assist with verifying Labor Conditions at the worksite, and ended the

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call. Petitioner filed a complaint with U.S. DOL WHD.

Majestic IT – Boca Raton / Deerfield Beach Florida

53) Went to both locations listed in LCA Disclosure Data. Boca Raton location was occupied by another tenant. Office was small, no more than two persons could work comfortably. Left LCA Review / PAF Challenge request with contact information under door. Majestic IT filed for eighteen LCAs at this address. At the Deerfield Beach location the office was leased to Majestic IT, but no one present. Again, office appeared to be for two to three persons, not the thirty-three for which LCAs were filed. Petitioner likewise left a request for Labor Condition documents under the door, and at the time of filing this Petition, has not heard from them.

JM Family Companies – Deerfield Beach Florida

54) No LCAs filed at all. Not typical of larger companies that employ foreign workers via outsource. Typically they will have one or more LCAs filed in their own name. In this case all LCAs filed for persons placed at JM Family Companies are filed by others, with JM Family Companies shown as the SECONDARY_BUSINESS_ENTITY. Two-hundred fifty-one since 2022. Most by SHITCOs, two filed by Accenture, two by Capgemini, twelve by Compunnel. Most likely this is because JM Family Companies is an automobile-industry company. If they hired foreign workers directly they would have to give notice to existing employees, who may be unionized. JM Family Companies is able to skirt this obligation by using other entities to provide foreign workers.

510 Franklin Ave, Nutley NJ – A High Tech Mecca

55) This nondescript, former early 20th Century theatre in Nutley New Jersey has seven businesses, all SHITCOs, sharing eight small suites, who claim the biggest names in industry as their clients and collectively filed six-hundred one LCAs since 2022. Petitioner sent an inspector there, and there appears to be nobody present at that address. Petitioner

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contacted the property manager, and the property manager claimed that the suites were actually occupied, but that he did not know who the tenants were. All LCAs were filed by the John Boudia Law Firm.

KForce – Multiple possible violations of law, civil and criminal, including RICO

56) KForce uses illegal background checks to disqualify American workers. They use prior criminal convictions as cause to PERMANENTLY remove those persons from consideration. These background checks are illegal because KForce deliberately does not provide adverse-action notice to persons prior to taking adverse-action against them on basis of the background check report, but rather immediately and permanently blacklists them, so that they can claim that they cannot find American workers. KForce uses false offers of employment, (false pretenses), to run background checks on people, so they can permanently disqualify them, and then claim that they cannot find American workers. KForce illegally runs background checks on persons who are not its employees, again to disqualify American workers and contractors, as described infra.

57) On 22 September 2025, Petitioner Received a solicitation from ConvexTech Inc for a remote role with KForce at UMMS In Maryland. (University of Maryland Medical System). The email Petitioner received suggested that the actual employer would be UMMS. Later while speaking to a person located in India, that person claimed KForce would be the actual employer. The job did not appear anywhere on the UMMS Jobs website, nor the KForce jobs website. Petitioner contacted KForce by phone on 23 September 2025, and was almost unable to get through to anyone. None of the phone numbers advertised by KForce ever ring through to a human being. Eventually, Petitioner got through to a “help desk”. The agent claimed that there was “no way” that she could verify that the job was real, nor that ConvexTech was an actual vendor to KForce, nor that the solicitation from ConvexTech on behalf of KForce was actually legitimate.

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58) Maryland state agencies and Universities have filed more than two thousand LCAs in the past three years. Maryland is a known region for people from India to immigrate, and form SHITCOs. Searching for ConvexTech in the LCA Database reveals that their EMPLOYER_ADDRESS resolves to a small Regus™ virtual-office or shared office, and that for the thirty-one LCAs filed in the past three years, by ConvexTech, twenty-seven of them are for a single SECONDARY_BUSINESS_ENTITY. (This is one indicia of fraud). That client is CyberMart LLC. The LCA Disclosure Data shows three separate WORKSITE_ADDRESS locations for CyberMart LLC. Two of them resolve to vacant lots in Texas, (certain indicia of fraud), the third resolves to a Regus™ virtual-office or shared office. As for the online inventory of CyberMart, it is around fifty items per category. None of those items are unique, original, or extra-ordinary, and all of them are exactly the sort of items that stock the shelves of thousands of small independent grocery stores, “bodegas”, neighborhood markets and convenience stores around the country, and are readily available from distributors like McLane, and Core-Mark. Additionally, CyberMart on its website also solicits independent sellers to use CyberMart's online platform to sell their own products, and claims to offer “Free Registration, Free Marketing, Zero Transaction Fees, No Commission, Free Product Optimization”. This is suspicious because what CyberMart is supposedly offering for free, is what ALL other online selling platforms charge money for, to earn the revenue that sustains the business, and yield a profit margin. This suggests that the money funding this business is coming from somewhere else, and as such, CyberMart is a front for money-laundering.

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59) Additionally, when testing the site by attempting to purchase a jar of Mayonnaise, Petitioner discovered that upon proceeding to checkout, the website prompts the purchaser to create an account by entering an email address. It then prompts the user to enter a “One Time Password”, (OTP), that was sent to the user's email, with a fifteen-second time-out! This is absolutely out of norm for such systems, and makes it almost impossible to actually purchase anything. After managing to successfully play “Beat The Clock”, and getting

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through to the shipping details screen, and entering contact information, the user is then prompted again to enter another OTP, that is sent this time via SMS to the user's phone, again with a fifteen-second timeout! Since the phone number Petitioner entered was like that for movies, (555 prefix), he has no knowledge as to whether the text message would be received in time to actually complete the purchase, and based on the fraudulent nature of that website, Petitioner was reluctant to enter any of his actual personal or financial information like a phone number or credit card number.

60) When viewing the shopping cart page for that site, during the purchase process, it showed the selected item as being "In Stock", but below the "Proceed to Checkout" button it makes the disclaimer that "Item availability and pricing are not guaranteed until payment is final." Again, suggestive of fraud. Finally, upon dialing the phone number shown on the site to contact them, it rang through to the personal phone of an unknown individual, not any kind of business location, and that person had no knowledge of that phone number ever being associated with CyberMart, much less any knowledge of CyberMart at all. That person spoke clear American English as someone who had their entire life, with no foreign accent. Based on the practical unusability of CyberMart.com, a bogus phone number, the LCAs filed for CyberMart, the company that filed them, and its association to KForce, it is almost certain that CyberMart.com is a front, designed so that its operators will never have to ship any goods, and instead the phony company operating it is used for other things like money laundering, wire fraud, or other RICO acts related to Visa procurement, and immigration.

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61) KForce has made it publicly known that Petitioner is permanently barred from employment and business with them. Petitioner has brought legal actions against KForce in the past and in their pleadings they have unequivocally stated that they will not hire Petitioner. In this instance after responding to the solicitation from ConvexTech, and contacting their agent by phone, who was physically located in India, Petitioner replied to

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the email he received, requesting submission for the role. At this point in the application process, in ALL other cases, the soliciting party sent a “rate confirmation” email, which petitioner confirmed by reply, and then the soliciting party at least claimed they were submitting Petitioner's application to the hiring party. In this case, the party contacting Petitioner stated that he would submit Petitioner's Resume to the manager, and get back to Petitioner. In Indian scammer IT Staffing parlance, forwarding something to a manager is a euphemism for doing nothing.

62) In two prior recent instances, Petitioner was contacted by other parties physically located in India, but claiming to be representing SHITCOs located in America, for roles through KForce, as typical fourth-party Indian deals. In the earliest of the two, Petitioner simply skipped these interloping parties entirely, and attempted to contact the end client directly by phone, but no one ever answered or called back. Petitioner submitted a Vendor Application to them on behalf of his corporation, but never received any response. The employer in that case was Corewell Health, who has filed 157 LCAs on its own behalf, since 2022, and has an additional 30 filed on its behalf by SHITCOs. The later of these two prior instances involves an employer in Petitioner's “ordinary commute distance”, AutoNation, which has filed thirty-seven LCAs on its own behalf, since 2022, with an additional seventy-seven filed on its behalf by mostly SHITCOs, but also Tata Consultancy Services and Compunnel. Petitioner will ultimately be doing a Labor Conditions Review and PAF Challenge for those LCAs.

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63) In both of these previous examples, the offshore “recruiter” claimed that Petitioner would be working as an employee of the fourth-party company soliciting for KForce, or could work as a “Corp to Corp” contractor to them if Petitioner operated a corporation. But, Petitioner was told that in both such instances KForce would be running a background check on Petitioner, and submitting it to the end client. It is a violation of the FCRA for KForce to run an employment-purposed background check on a person who is not, nor will be an

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employee of KForce, and it is a violation of the FCRA for KForce to unlawfully act as a Consumer Reporting Agency by furnishing a background check report relating to a particular person to a party that has no relationship whatsoever with that person. KForce engages in these unlawful background checking practices to permanently disqualify Americans from employment, in order to profit from its Visa sponsorship business, as described infra.

64) Because by its own policy there was no reason for KForce to contact Petitioner in the first place, it appears that KForce is using its blacklist deliberately to claim that they contacted American workers, but none are employable, in order to give the role to current H1B Visa holders under its employ who are currently “benched”, (i.e. between assignments), or for whom KForce has otherwise previously received a Visa. The reason for this is that as a Visa sponsor, KForce is obligated to continue to pay prevailing wages to its Visa beneficiaries even during down time, and by its own count has successfully processed 38,000 Visa cases. This is substantiated as follows:

65) KForce claims that it ranks in the top 1% for Visa Sponsorship in the U.S., and that all of its consultants are W-2 employees.

<https://www.kforce.com/solutions/international-talent-solutions/>

66) KForce openly advertises itself as a Visa sponsor:

<https://www.kforce.com/find-work/visa-sponsorship-solutions/>

67) KForce offers, or claims to offer comprehensive assistance of various types to foreign workers including:

a) Visa Remediation: (“addressing” and “resolving” “even the most complex visa issues to ensure successful engagement”), and;

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b) Direct marketing of candidates to end clients, and;

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c) Consultant Redeployment: “Before your current assignment ends, our redeployment team of experienced staffing specialists are already working to find your next opportunity.” This is a service that KForce never provides to its American workers.

68) During a previous investigation of KForce, Petitioner contacted them as a client, and requested a programmer for an entry-level programming task which many Americans offer publicly on Craigslist, Freelancer, and UpWork. During the conversation, the recruiter acknowledged that KForce runs background checks on all persons it places at clients, and that if such persons have criminal records, “we don't ever deal with them again”. Finally in that conversation, when Petitioner asked about the possibility of obtaining a foreign worker, that account manager stated that it “could be arranged”. At no time did that person ever state that it would only be possible if an American worker could not be found.

69) ICCS / iContentSAAS

Listed as SECONDARY_BUSINESS_ENTITY in one hundred forty-one LCA filings since 2022, company headquarters is 9250 W Bay Harbor Drive, Unit 7C, a condo in Miami area. This business is listed as a secondary entity by EMPLOYER companies that are suspect, including one known fraud, QUANTUM TECHNOLOGIES LLC, a Srinivasa Reddy company. All LCAs filed with ICCS as a Secondary Entity, claim beneficiaries will be working remotely for that entity.

70) This business entity is suspect because:

- i.) It is associated with Srinivasa Reddy Kandi.
- ii.) Its headquarters location is not zoned for business, but is residential, and operating a business from that residence is almost certainly a violation of the HOA rules in that community.
- iii.) The WORKSITE_ADDRESS shown in the LCAs where ICCS is a Secondary Entity, is that of the EMPLOYER company. The number of LCAs filed for these worksite

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addresses appears to exceed the occupant capacity for those locations.

iii) It is highly unlikely that at 9250 W Bay Harbor Drive, Unit 7C, there exists any kind of data center, or business, that others would be remotely logging in to, from the WORKSITE_ADDRESS, or that would be using any software, or any kind of technology product produced by workers at the WORKSITE_ADDRESS, much less be using the work product of one-hundred or more people.

iv) In a worst-case scenario if there is such a telecommunications hub there, it may be in use for criminal purposes, or espionage purposes. The advantage of that location is that a warrant is required for entry, whereas anything rented like ordinary business locations could be accessed by permission of the landlord. The community itself is very low-key with typically only older people ever allowed to live there, and units that may only be used as vacation or winter homes by some residents. Almost certainly a place where people mind their business and live quietly, and the police rarely ever have to go.

Again, this business is likely a front of some kind, possibly money-laundering, or worse.

71) Remote Work

The LCA Data Show at least 37,000 LCAs filed that indicate remote work to various Secondary Business Entities. As a class, these are likely fraudulent. For an Employer to claim they need to import a foreign worker to move to America, to establish a residence anywhere in the country, to work from home, is highly suspect.

72) However, a remote-work exploit that is commonplace and has been recorded to some extent at least in Federal Cases against the “Bollywood” companies, is that the actual persons using Visas to stay in America have no Specialty Occupation skill whatsoever. They are literally placeholders. The actual work is being done by persons in India, because by its nature, (Software Development), it can be produced and delivered remotely. Ultimately the Secondary Entity receives a person at their Worksite who has no qualifications at all, but fronts for a team of developers offshore.

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73) Here is the math:

The top ten offshore IT Services Companies, (“Bollywood”), using SHITCOs as fronts are:

- i) Tata Consultancy Services, an Indian Corporation.
- ii) Cognizant, incorporated in New Jersey where identity of corporate officers is not publicly disclosed, incorporated and operated predominantly by Indian nationals.
- iii) Infosys, an Indian corporation, U.S. Headquarters in Richardson Texas.
- iv) Capgemini, incorporated in France, with a large Indian workforce in India, used to traffic Indian nationals into American Jobs.
- v) LTIMINDTREE incorporated in New Jersey, formerly operating as Larsen and Toubro.
- vi) HCL, Indian company with U.S. Headquarters in Sunnyvale California.
- vii) Accenture, Irish corporation, used to traffic Indian nationals into American Jobs.
- viii) Wipro, incorporated in New Jersey, operated by Indian nationals.
- ix) Compunnel. incorporated in New Jersey, operated by Indian nationals.
- x) Tech Mahindra, part of Mahindra Group, an Indian company, with American headquarters in Plano TX.

74) Literally these ten companies are served by more than one thousand “Visawali”. That is, just over 1,000 SHITCOs list one or more of the above companies as the SECONDARY_ENTITY_BUSINESS_NAME in their LCA filings. What this means is that by using more than 1,000 other companies to front for them, the top ten “India Focused” personnel companies are able to increase their chances of Visa lottery winning, by three orders of magnitude, while at the same time obscuring the discovery of their fraud by the same factor.

75) This is deliberate and intentional, and there is evidence to suggest that these SHITCOs that act as “Visawali”, were all funded by the larger IT Vendors for the purpose of exponentially increasing the number of LCAs they can file.

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76) Ultimately, all of this activity is coordinated through a professional association known as the ITServe Alliance, and is assisted by organizations like the South Asian Bar Association, of which This District's Court of Appeals' Chief Judge is a member.

77) The totality of circumstances described supra means that some number of LCAs contain wholly false attestations, and based on analysis of LCA Disclosure Data, that number appears prohibitively large. This means some number of Visas were actually issued to persons based on a wholly false LCA, and that those persons are illegally in America now, or on their way to be here illegally since the most recent lottery. Because the H1B Visa Program is replete with such gross fraud and cheating by Visa sponsors, false pretenses by Visa sponsors, employment law violations by Visa sponsors, and acts by Visa sponsors that are predicate acts of Racketeer Influenced Corrupt Organizations, Petitioner requests the following from this Court:

78) A Writ of Mandamus compelling Respondent to do the following:

Suspend indefinitely, all further H1B Visa Lotteries, and;

Suspend the operation of all H1B Visas issued in the March 2025 Visa lottery, and;

Suspend the operation of all H1B Visas issued by lottery in 2022, 2023, and 2024, and;

Verify the truth and accuracy of each and every Labor Condition Application that was filed for each and every person who was issued a Visa by lottery in 2022, 2023, 2024, and 2025, and;

Verify the truth and accuracy of each and every Public Access File held by every employer that is currently employing any person who was issued a Visa by lottery in 2022, 2023, 2024, and 2025;

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Or, in the Alternative:

Order Respondent to appear herein and show cause why he should not be so mandated;

And:

Any and all other remedy that the Court may create to the ends of Justice in this matter.

Submitted to the Court, This _____ Day _____, 20____.

Mr. Piero A. Bugoni, Pro - Se

Certificate of Filing with The Court:

The Original of This Document was delivered to the Court on

_____, by Petitioner, via United States First Class Mail

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